

SENATE No. 2293

The Commonwealth of Massachusetts

PRESENTED BY:

Edward J. Kennedy

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to promote energy and economic resilience through clean energy education and job pathway programs.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Edward J. Kennedy</i>	<i>First Middlesex</i>	
<i>Rodney M. Elliott</i>	<i>16th Middlesex</i>	<i>1/17/2025</i>

SENATE No. 2293

By Mr. Kennedy, a petition (accompanied by bill, Senate, No. 2293) of Edward J. Kennedy and Rodney M. Elliott for legislation to promote energy and economic resilience through clean energy education and job pathway programs. Telecommunications, Utilities and Energy.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 2141 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to promote energy and economic resilience through clean energy education and job pathway programs.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 5 of chapter 59 of the General Laws, as appearing in the 2022
2 Official Edition, is hereby amended by adding the following clause:-

3 Fifty-fifth C, Any system or device used for purposes of storing electrical energy, and all
4 supporting, ancillary or connected structures and devices; furthermore, such system and device
5 shall not be deemed a fixture of the real property upon which it resides and it shall in no way
6 affect or be included in the value of the real property upon which it resides.

7 SECTION 2. Section 6 of chapter 64H of the General Laws, as amended by section 4 of
8 chapter 90 of the acts of 2018, is hereby further amended by adding the following subsection:-

(yy) Sales of energy storage systems, as defined in section 1 of chapter 164.

SECTION 3.

Chapter 69 of the General Laws is hereby amended by inserting after section 1F the following section:

Section 1.5F

(a) There shall be within the Massachusetts Department of Elementary and Secondary Education a clean energy education program to provide funding to the Commonwealth's technical and vocational high schools provided said technical and vocational high schools have educational development, workforce training, and job placement programs in the clean and renewable energy industries.

(b) The department of public utilities shall annually direct the electric and gas distribution companies and municipal aggregators with certified energy plans to jointly transfer funds collected pursuant to section 19 of chapter 25 to the Massachusetts Department of Elementary and Secondary Education for the purposes of providing funding to vocational and technical high schools with clean energy and renewable energy programs; clean energy and renewable energy technology programs; energy storage technology programs; electric vehicle technology programs; and clean energy and renewable energy technology manufacturing programs; provided, that the electric and gas distribution companies and municipal aggregators with certified energy plans shall transfer no less than \$20,000,000 no later than December 31 each year. Such transfer shall not reduce the amount expended on low-income programs pursuant to subsection (c) of said section 19 of said chapter 25.

SECTION 4. Said section 19 of said chapter 25, as so appearing, is hereby further amended by adding the following subsection:-

(e) Notwithstanding any provision of this section to the contrary, the department shall annually direct the electric and gas distribution companies and municipal aggregators with certified energy plans to jointly transfer, on or before December 31, not less than \$20,000,000 in funds collected pursuant to this section to the Massachusetts Department of Elementary and Secondary Education for vocational and technical high schools with clean energy and renewable energy programs; clean energy and renewable energy technology programs; energy storage technology programs; electric vehicle technology programs; and clean energy and renewable energy technology manufacturing programs; pursuant to section 1.5F of chapter 69; provided, however, such transfer shall not reduce the amount expended on low-income programs pursuant to subsection (c).

SECTION 5. Section 146 of chapter 164 of the General Laws, as appearing in section 18 of chapter 227 of the acts of 2018, is hereby amended by striking out the words “Electric distribution companies shall file an annual electric distribution system resiliency report with the department” and inserting in place thereof the following words:- Not later than October 1, 2025, and not later than October 1 of each year thereafter, electric distribution companies shall file an annual electric distribution system resiliency report with the department and the joint committee on telecommunications, utilities, and energy.

SECTION 6. On or before January 1, 2026, the department of energy resources shall establish a rebate for Massachusetts-based companies installing and manufacturing energy storage systems, as defined in section 1 of chapter 164 of the General Laws. The department may

consider using, but shall not be limited to, the following funding sources for said rebate: (i) energy efficiency funds under section 19 of chapter 25 of the General Laws provided that such funds shall only be used if the department determines that the energy storage system installed at a customer's premises provides sustainable peak load reductions on either the electric or gas distribution systems and is otherwise consistent with section 11G of chapter 25A of the General Laws; and (ii) alternative compliance payments established and administered pursuant to section 11F of chapter 25A of the General Laws. The department shall promulgate regulations consistent with this section.

SECTION 7. Subsection (yy) of section 6 of chapter 64H of the General Laws is hereby repealed.

SECTION 8. Section 7 shall take effect on December 31, 2031.